

A Case Study on Precision in Legal Citation

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Abstract

Legal scholarship depends on accurate citation to ensure the integrity and verifiability of judicial references. This case study examines a citation inconsistency in the peer-reviewed article “Is Section 34(2) of the Civil Procedure Code Equitable?” (Karandikar 2022), which gives the decision date of *Gopal Vitthalrao Bamankar v. Gajanan Vitthalrao Bamankar* as 5 July 2028 rather than the correct date of 5 July 2018 as recorded in the Bombay High Court judgment. The discrepancy is limited to the year of the judgment. Although minor, such inconsistencies illustrate a broader issue applicable to legal scholarship generally: the importance of systematically verifying factual particulars in judicial citations against the underlying judgment or another reliable source.

Introduction

Legal scholarship requires precision in the citation of cases, statutes, and other authoritative sources. Citations do more than identify legal authorities: they provide the basis on which readers can verify propositions, trace sources, and evaluate legal arguments. Even minor inaccuracies can therefore impede verification and diminish confidence in the reliability of a scholarly work.

This paper examines a specific citation inconsistency identified in the peer-reviewed article “Is Section 34(2) of the Civil Procedure Code Equitable?” published in the *Indian Journal of Law and Legal Research* (Karandikar 2022). The inconsistency concerns the date attributed to the decision in *Gopal Vitthalrao Bamankar v. Gajanan Vitthalrao Bamankar*. The purpose of this study is to establish the accuracy of the citation and to consider the broader implications of such discrepancies for the verification of judicial citations in legal scholarship. The study does not extend to evaluating the substantive legal analysis presented in the article.

Methods

This study adopts a focused case-study methodology. The article was examined for potential inconsistencies in its citations to judicial decisions. Upon identifying a discrepancy, the cited decision was checked against the text of the Bombay High Court judgment. The inquiry is factual in scope: it seeks to establish the correct date of the decision and assess the accuracy of the corresponding citation in the article.

The case is used as an illustrative example rather than as evidence that citation inaccuracies are characteristic of any particular author, journal, or publication. The broader methodological question concerns the verification of factual particulars in judicial citations generally.

Results

A citation inconsistency was identified in the reference to *Gopal Vitthalrao Bamankar v. Gajanan Vitthalrao Bamankar*. Karandikar (2022) gives the date of the decision as “5th July 2028.” The Bombay High Court judgment, however, records the date of decision as 5 July 2018.

The discrepancy is therefore confined to a single digit in the year of the decision, with 2028 appearing in place of 2018. The judgment identifies the matter as Second Appeal No. 638 of 2017 and records the date as 5 July 2018. Because the decision date forms part of the identifying information for a judicial authority, accuracy in this element is important for reliable identification and independent verification.

Discussion

The discrepancy examined here is limited to a single digit in the year of the decision, but it illustrates a broader issue applicable to legal scholarship generally: the need for systematic verification of judicial citations against primary sources. Accurate citations enable readers to identify the relevant authority, independently verify its contents, and place the cited decision within its proper chronological and jurisprudential context. An incorrect year, even where the underlying legal proposition remains unaffected, may make a judgment more difficult to identify or verify.

Although the present case concerns a citation in Karandikar’s article, the methodological issue is not specific to that work. Similar discrepancies may arise in any form of legal scholarship, including journal articles, books, case notes, dissertations, and other publications that rely on judicial authorities. The significance of the present example therefore lies not merely in correcting an individual citation, but in illustrating the general importance of verifying factual citation details before publication.

This finding should be understood as a bibliographic correction rather than an assessment of Karandikar’s substantive analysis of Section 34(2). The example instead demonstrates a general challenge in legal scholarship: ensuring that factual particulars—including decision dates—are verified against the underlying judgment or another reliable source. Citation accuracy is consequently a responsibility that may involve authors, reviewers, and editors at different stages of the publication process.

Several practical measures can reduce the likelihood of similar discrepancies. First, judicial citations should be checked against the underlying judgment or another reliable legal source before submission. Second, citation verification should form part of the copyediting and editorial review process rather than being treated solely as an authorial responsibility. Third, where a factual citation discrepancy is discovered after publication, a concise correction or erratum can preserve the accuracy of the scholarly record without requiring any reassessment of the underlying legal argument.

The broader lesson is that citation verification should not be limited to cases in which an error is suspected. A systematic approach can treat factual citation details as independently verifiable elements of scholarly writing. Such an approach is particularly valuable where a publication contains numerous judicial references, where similar case names may create ambiguity, or where an incorrect date could affect the reader’s ability to locate the authority.

Conclusion

Precision in legal citation is essential to the integrity and usability of legal scholarship. The discrepancy examined in this case study demonstrates how an inaccuracy in a decision date can impede independent verification of a judicial authority. Although the present example concerns a single published citation, the underlying principle applies broadly to legal scholarship: factual particulars in judicial citations should be verified against the underlying judgment or another reliable source.

Systematic citation checking by authors, reviewers, and editors can substantially reduce such discrepancies and improve the reliability of published work. Where an error is identified after publication, an appropriate correction can restore the accuracy of the scholarly record without implying that the underlying legal analysis is necessarily affected.

In the present case, correcting the cited decision date from 5 July 2028 to 5 July 2018 resolves the identified inconsistency. The correction is best understood as a factual and bibliographic clarification. More broadly, the case illustrates why accurate and independently verifiable judicial citations should be treated as a general requirement of reliable legal scholarship rather than as a concern limited to any particular author or publication.

References

1. Karandikar, Prabhakar D. 2022. “Is Section 34(2) of the Civil Procedure Code Equitable?” *Indian Journal of Law and Legal Research* 4 (5): 1–7. <https://doi-ds.org/doilink/10.2022-82336556/IJLLR/V4/I5/A1>.
2. *Gopal Vitthalrao Bamankar v. Gajanan Vitthalrao Bamankar*. Second Appeal No. 638 of 2017. Bombay High Court, Nagpur Bench, 5 July 2018. <https://indiankanoon.org/doc/111090365/>.